

Application of
Act to Scot-
land.

4. In the application of this Act to Scotland the expression "misdemeanour" means crime and offence.

Application of
Act to Chan-
nel Islands and
Isle of Man.

5. In the application of this Act to the Channel Islands and the Isle of Man—

- (1) The lieutenant governor of the Island of Jersey or the Island of Guernsey and the governor, lieutenant governor or deputy governor of the Isle of Man, as the case may require, shall be substituted for the Board of Trade:
- (2) Offences may be prosecuted, fines recovered, proceedings taken and search warrants issued in such courts and in such manner as may for the time being be provided in the Channel Islands and the Isle of Man by law, or, if no express provision is made, then in and before the courts and in the manner in which the like offences, fines, proceedings and warrants may be prosecuted, recovered, taken or issued therein by law, or as near thereto as circumstances admit, and the bailiff or his lieutenant, or any jurat of the Royal Court in the Island of Jersey or the Island of Guernsey, and the judge or any jurat of the Court of Alderney, and the high bailiff or two justices of the peace in the Isle of Man, shall respectively be substituted for a justice of the peace.

Duration of
Act.

6. This Act shall continue in force until the thirty-first day of July nineteen hundred and six and no longer, unless Parliament otherwise determines.

CHAPTER 25.

An Act to amend the Law with respect to Customs Duties in the Isle of Man. [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Increased •
duties on
certain kinds
of tobacco.
61 & 62 Vict.
c. 27.

1. The duties of Customs payable under section one of the Isle of Man (Customs) Act, 1898, on manufactured tobacco shall as from the twenty-ninth day of April, nineteen hundred and four, be increased in the case of cigars by sixpence per pound and in the case of cigarettes by one shilling per pound.

Continuance of
additional
duties on
tobacco, tea,
spirits, ale and
beer.
63 & 64 Vict.
c. 31.

2. The additional duties of Customs on tobacco, tea and spirits removed or imported into the Isle of Man, imposed by section one of the Isle of Man (Customs) Act, 1900, and the additional duty on ale and beer removed or imported into the Isle of Man, imposed by the second paragraph of section two of that Act, shall continue to be charged, levied and paid as from the first day of August,

nineteen hundred and four, until the first day of August, nineteen hundred and five.

3. This Act may be cited as the *Isle of Man (Customs) Short title, Act, 1904.*

CHAPTER 26.

An Act to amend the Indian Councils Act, 1874.

[15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. In section one of the Indian Councils Act, 1874, the words "who shall be called the member of council for public works purposes" and in section two of the same Act the words "for public works purposes" are hereby repealed. Repeal of certain words in 37 & 38 Vict. c. 91.

2. This Act may be cited as the *Indian Councils Act, 1904.* Short title.

CHAPTER 27.

An Act to authorise the transfer to the Secretary for Scotland of certain powers and duties under the Acts relating to Reformatory and Industrial Schools.

[15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The Secretary of State may, with the concurrence of the Treasury and the Secretary for Scotland, make orders transferring to, or making exercisable by, the Secretary for Scotland all or any of the powers and duties of the Secretary of State under any of the Acts, general or local, relating to reformatory and industrial schools, so far as those powers and duties relate to or are exercisable in Scotland. Orders for transferring to Secretary for Scotland certain powers relating to reformatory and industrial schools.

(2) Orders made under this section shall be forthwith laid before Parliament, and the Rules Publication Act, 1893, shall, notwithstanding subsection five of section one of that Act, apply to them as statutory rules, and publication in the *Edinburgh Gazette* of the notice required by the said section one shall be requisite in addition to publication in the *London Gazette*. 56 & 57 Vict. c. 66.

2. This Act may be cited as the *Secretary for Scotland Act, 1904*, and may be cited with the *Secretary for Scotland Acts, 1885 to 1889.* Short title.